

PARECER/2023/78

I. Request

1. The Secretary of State for the Presidency of the Council of Ministers requested on July 28, 2023, that the National Data Protection Commission (CNPD) issue an opinion by August 7, 2023, on the following projects:

i)

DL 219/XXIII/2023, which revises the legal regime of the simplified cadastral information system and the Single Counter of the Property, providing for the creation of new procedures, the expansion of the scope of application of existing procedures, and the extension of the regime of gratuity (hereinafter referred to as Project DL).

ii) DR No. 267/XXIII/2023, which “proceeds with the second amendment to Regulatory Decree No. 9-A/2017, of November 3, which regulates the legal regime of the Simplified Cadastral Information System and the Single Counter of the Property” (hereinafter referred to as Project DR).

2. The CNPD issues opinions within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of No. 1 of Article 57, paragraph b) of No. 3 of Article 58, and No. 4 of Article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation, in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and paragraph a) of No. 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

i)

The legal framework of the Projects

3. The Property Registration Code, approved as an annex to Decree-Law No. 224/84, of July 6, in its current wording, is essentially intended to publicize the legal status of properties, aiming at the security of real estate legal transactions (Article 1).

4. Law No. 78/2017, of August 17, aimed, according to its Article 1, at the implementation of a simplified cadastral information system, adopting measures for the immediate identification of land structure and ownership of rural and mixed properties (a) and the Single Counter of the Property (BUPi) (b), as a physical and virtual counter under the responsibility of the Institute of Registries and Notaries, I.P. (Article 22, No. 1).

5. Regulatory Decree No. 9-A/2017 of November 3 regulated the Single Counter of the Property (BUPi).

6. Law No. 65/2019, of August 23, generalized the application of the cadastral information system established by the aforementioned Law No. 78/2017, promoting the universalization of the Single Counter of the Property (BUPi), as a national platform for land registration and cadastre (PNRCT), covering urban, rural, and mixed properties throughout the national territory, also creating the Technical Coordination Center, integrated into the Ministry of Justice (Article 5, No. 1, paragraph a)).

7. Regulatory Decree No. 4/2019, of November 3, amended the regulation of the simplified cadastral information system, already established in the aforementioned Regulatory Decree No. 9-A/2017.

8. In turn, from the normative legal platform concerning data protection, we can extract the relevant legal framework for the assessment of the present Projects, namely regarding principles related to the processing of personal data, with emphasis on the Charter of Fundamental Rights of the European Union (hereinafter CDFUE) and the General Data Protection Regulation (hereinafter GDPR).

9. Thus, according to Article 8 of the CDFUE, the processing of personal data must be carried out with strict respect for the rights, freedoms, and guarantees of individuals, especially the right to the protection of personal data (principle of legality).

10. Regarding the GDPR, it established in Article 5, No. 1 that personal data are: i) Subject to lawful, fair, and transparent processing (lawfulness, fairness, and transparency); ii) Collected for specified, explicit, and legitimate purposes, and not processed in a manner incompatible with those purposes (purpose limitation); iii) Adequate, relevant, and limited to what is necessary for the purposes for which

they are processed (data minimization); iv) Accurate and kept up to date where necessary, and all reasonable measures must be taken to ensure that inaccurate data are erased or rectified without delay (accuracy of data); v) Kept in a form which permits identification of data subjects only for as long as necessary for the purposes for which the data are processed (storage limitation); vi) Processed in a manner that ensures their security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality).

11. Finally, Article 5, No. 2 established the command that the data controller must implement measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the principles set out (accountability).

ii) The legal design of the Projects and their sustainability

12. Project DL focuses on the Property Registration Code, approved as an annex to Decree-Law No. 224/84, of July 6, in its current wording, also integrating the first amendments to Law No. 78/2017, of August 17, and Law No. 65/2019, of August 23.

PAR/2023/81

2

13. The DL Project enumerates its object (Article 1 of the DL Project), amends the Land Registry Code (Article 2 of the DL Project), amends Law No. 78/2017, of August 17 (Article 3 of the DL Project), as well as Law No. 65/2019, of August 23 (Article 4 of the DL Project), adds articles to the Land Registry Code (Article 5 of the DL Project), making additions to Law No. 78/2017, of August 17 (Article 6 of the DL Project), as well as to Law No. 65/2019, of August 23 (Article 4 of ???)<sup>1</sup>, the addition of Annexes I and II to Law No. 65/2019, of August 23 (Article 5 of ???), proceeding with a change of nomenclature, designated as “Systematic Changes” (Article 9 of the DL Project), detailing the revoked norms (Article 10 of the DL Project), expressing the temporal limit of gratuitousness (Article 11 of the DL Project), establishing the application to ongoing procedures (Article 12 of the DL Project), the promotion of the registration of vacant lands and public domain real estate (Article 13 of the DL Project), the availability of cadastral elements in the BUPi (Article 14 of the DL Project), the republication of Annexes II and III (Article 15), the moment of validity of Article 14 of Law No. 65/2019, of August 23 (Article 16 of the DL Project), and the entry into force (Article 17 of the DL Project).

14. The DR Project corresponds to the second amendment to the aforementioned Regulatory Decree No. 9-A/2017.

15. The DR Project establishes its object (Article 1 of the DR Project), specifies the altered norms (Article 2 of the DR Project), the Annexes I and II to the initial diploma also reformulated (Article 3 of the DR Project), adding other articles (Article 4 of the DR Project) and Annexes III and IV (Article 5 of the DR Project), proceeding with changes of nomenclature, designated as “Systematic Changes ...” (Article 6 of the DR Project), specifying the transitional provision (Article 7 of the DR Project), the scope of the revoking norm (Article 8 of the DR Project), stating the republication of Annex V (Article 9 of the DR Project) and the moment of the beginning of its validity (Article 10 of the DR Project).

16. The CNPD regarding the projects of the original version of Regulatory Decree No. 9-A/2017 and its first amendment issued the opinions stated below.

17. Opinion No. 52/2017 concluded with the following conclusions: (i) the elimination of the adverb “namely” inscribed in paragraph 1 of Article 5 of the Project and the alteration of the wording of subparagraph b) of paragraph 1 of Article 5 of the Project [Article 6 of Regulatory Decree No. 9-A/2017], so that the data does not exceed the scope of the regime created by Law No. 78/2017, of August 17; (ii) reconsideration of the requirement for registration in the registry, for publicity, of the data of the professional domicile [when this is of a natural person and corresponds to their personal domicile]; (iii) the definition in the present Project of the authentication conditions for the employees of the interested public entities [especially if it depends on a prior registration of the same, who is the

<sup>1</sup> There is a manifest error in the renumbering of Articles 4 and 5 of the DL Project.

2v.

responsible for such registration and how the correlation of information is processed]; (iv) the

clarification or explanation of the provisions in paragraph 3 of Article 7, in subparagraph c) of paragraph 3 of Article 20, and in paragraph 2 of Article 22 of the Project [regime of data interoperability].

18. The Opinion 2019/48 presented the following conclusions: (i) it notes that it cannot express an opinion on the appropriateness of attributing to the Technical Coordination Center the competencies provided for in paragraph 2 of Article 9 and paragraph 1 of Article 17 of the Project, the exercise of which involves the processing of personal data, which to date falls under the Tax Authority or the Institute of Registries and Notaries, I.P.; (ii) it regrets that the current project continues to be silent regarding the definition of the conditions for the operation and interoperability of the BUPi, in violation of subparagraph d) of paragraph 1 of Article 25 of Law No. 78/2017, of August 17, recommending that the present [first] revision be used to comply with the provisions of that legal diploma.

19. The CNPD reinforced the observations made in the previous opinion, highlighting the following, providing an updated reading in accordance with Law No. 65/2019, which expanded the Single Counter of the Property (BUPi) to urban properties: i) it recommends the elimination of the adverb "namely" inscribed in paragraph 1 of Article 6 of the aforementioned Regulatory Decree; ii) it warns that the authentication mechanisms for officials must be provided by public entities, emphasizing the importance of ensuring that such mechanisms do not contradict the provisions of national law, especially regarding the use of the citizen card as a means to carry out such access.

iii) The possible impact of the Projects on the protection of personal data

20. The Project DL, according to its preamble, essentially promotes: "i) The ability of qualified technicians to verify the compliance of the documents presented to them in the procedure of georeferenced graphical representation (RGG), for use by registration services in the promotion, instruction, and processing of special registration procedures; ii) The creation of the administrative reconciliation procedure, which aims to enable property owners to reach an agreement regarding the boundaries of adjoining properties, correcting overlapping polygons in RGG procedures, which will now be directed by a land registry technician; iii) The use of the public consultation procedure, in cases where not all boundaries of adjoining properties have yet been identified; iv) The promotion of the annexation of rural properties through the execution of a single RGG, which includes the matrices of the rural properties to be annexed, serving as support for the processing of all registrations and prior necessary procedures for the realization of the intended annexation; v) The establishment of procedures for harmonizing the matrix and registration information for properties located in municipalities that do not have a geometric registry of rural property or a land registry in force; vi) The expansion of the scope of application of the special registration procedure and the special justification procedure for properties.

PAR/2023/81

3

rural or mixed, to the properties described; vii) The expansion of the fee exemption regime; viii) The establishment of an extended exceptional period during which owners, free of charge and without penalties, local authorities, and other public entities with territorial competence will proceed to the collection and communication of simplified cadastral information; ix) The provision that the BUPi integrates a high-availability geographic services platform that qualifies as a Spatial Data Infrastructure and aims to provide content to the BUPi viewer and partner entities, ensuring the necessary attributes of security, scalability, and resilience."

21. The impacts on the protection of personal data from these legislative changes through the DL Project essentially concern the provision for the amendment of Law No. 78/2017 through "shared electronic authentication" and other mechanisms of "uniform use between both portals" (Article 22, No. 3), the regime of data in open format (Article 27).

22. Regarding "shared electronic authentication" and other mechanisms of "uniform use between both portals," they should be clarified as to how this authentication is carried out or what these mechanisms consist of, so that in light of this legislative vagueness, the CNPD does not have sufficient elements to express an opinion.

23. The regime of data in open format is regulated by Law No. 26/2016, of August 22, which approves

the regime for access to administrative and environmental information and the reuse of administrative documents, with the Commission for Access to Administrative Data (CADA) having the competence to assess this matter.

24. However, this is a matter that has a clear connection to the protection of personal data. In this regard, the CNPD considers that the legislator could always be more precise in specifying the personal data that may become accessible.

25. The DL Project also impacts personal data with the reformulation of Law No. 65/2019, when in its Article 1, titled “object and scope,” it establishes the normative provision for the “celebration of an inter-institutional collaboration agreement” between the Institute of Registries and Notaries, I.P. (INR, IP), the Technical Coordination Center (CCT), and each municipality, specifying the actions to be developed and the manner of sharing (No. 5), instituting the celebration of “cooperation protocols” between these entities and inter-municipal entities, on one hand, and other public and private entities, on the other hand (No. 6), allowing for a protocol between the INR, IP and the Tax and Customs Authority (No. 7), establishing a duty of collaboration in the “expansion of the simplified cadastral information system of BUPi” (No. 8).

26. Regarding the protocols between public institutions, including municipalities, we will refer to this later when analyzing the DR Project.

3v.

27. However, concerning the protocols between the designated public institutions and private institutions, the legislator should clarify the scope and specific purposes of these protocols and which personal data will eventually be shared. In the absence of this specification and clarification, the CNPD does not have sufficient elements to express an opinion on this matter.

28. The impact of the DR Project on the protection of personal data cannot be read in isolation, limited only to the projected legislative amendment, without considering the entirety of the existing legal framework and ignoring the previous positions of the CNPD.

29. The CNPD notes that the current DR Project maintains intact, due to not having been subject to any legislative change, the reservations expressed in previous opinions, which have not been duly acknowledged by the legislator.

30. In this regard, the CNPD reiterates, once again, its previous opinions, now in light of the GDPR, with emphasis on its Article 5, to which we have already referred.

31. It is also worth mentioning that the projected amendment maintains the purpose of storing “All data and metadata,” providing new wording to No. 5 of Article 21 of Regulatory Decree No. 9-A/2017, following the reformulation introduced by Regulatory Decree No. 4/2019.

32. The projected amendment is paradigmatic regarding the legislative understanding that has accompanied the creation of the Single Property Counter (BUPi) and the Technical Coordination Center, while simultaneously paradoxical regarding the attention given by the legislator to the matter of personal data protection, when confronted with other procedures implemented in the aforementioned Regulatory Decrees.

33. In this regard, we begin by considering the current and projected normative segment:

Current Article 21, No. 5 of the Reg. Dec.

Projected Article 21, No. 5 of the Reg. Dec.

All data and metadata are stored  
in information repositories accessible to  
the various entities involved, in compliance with  
the legal regime for the protection and processing of  
personal data, in terms to be defined by protocol to  
be established between those entities and the  
Technical Coordination Center.

All data and metadata are stored  
in information repositories accessible to  
the various entities involved, in compliance with  
the legal regime for the protection and processing of

personal data.

34. The CNPD notes a positive legislative concern regarding compliance with the legal regime for data protection. However, this is a legal tautology, as the processing of personal data is, in general, always subject to the GDPR.

PAR/2023/81

4

35. On the other hand, the "disappearance" of the protocol to be established does not indicate a negative relevance, as its enforceability continues to be provided for in paragraphs 2 and 3 of Article 27 of Law No. 78/2017 and is included in the aforementioned amendments to the Draft DL that we have already referred to.

36. However, the CNPD considers that it is entirely insufficient, for reasons of data processing security (Article 5, paragraph 1, subparagraph f of the GDPR), to defer the purpose of access control to a "protocol" to be established between the "involved entities."

37. Firstly, because these "involved entities" encompass all national municipalities, which number 308 (three hundred and eight)<sup>2</sup> as they comprise the Local Competence Units (Article 5, paragraph 1, subparagraph b of Law No. 65/2019).

38. Accordingly, it would be wiser to regulate the means and methods of access to the aforementioned databases, namely the security mechanisms to be implemented, which include access control, the recording of changes, the specification of the duration for which such accesses and changes are maintained, who makes the corrections, and responds to requests from individuals regarding the protection of their personal data, etc.

39. Moreover, the project reveals a meticulous concern with the processing of certain procedures, such as the special procedure for the justification of rural and mixed property (Articles 19-A, 19-B, 19-C, 19-D, and 19-F), which could be transposed to the protection of personal data.

40. Furthermore, the update or correction of the georeferenced graphic representation (RGG) is the responsibility of the promoter or the owner (Article 13-A of Regulatory Decree No. 9-A/2017), which will lead to systematic control of publicly accessible areas on a large scale.

41. In these cases, a data protection impact assessment is mandatory (Article 35, paragraph 3, subparagraph c of the GDPR), and no documentation in this regard has been presented to the CNPD.

### III. CONCLUSIONS

42. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) The specification of the aforementioned mechanisms of "shared electronic authentication" and "uniform use between both portals";
- b) The specification of the personal data that may become accessible through the "open data regime";
- c) The clarification of the purposes and specification of the scope of the protocols to be established between the designated public institutions and private institutions, as well as the personal data that will potentially be shared;
- d) The observations contained in Opinions No. 52/2017 and 2019/48, mentioned in items 17, 18, and 19;
- e) The establishment of a data retention period when the data becomes unnecessary;
- f) The clarification of the access control regime to the aforementioned databases, establishing a retention period for those records;
- g) The conduct of a data protection impact assessment.

Lisbon, August 7, 2023

Joaquim Correia Gomes (Rapporteur)